



SPONSOR: Sen. Sokola & Rep. Minor-Brown
Sens. Pettyjohn, Walsh, Wilson; Rep. Gorman

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 136

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO STATE GOVERNMENT AND THE
STATE EMPLOYEES' PENSION PLAN.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 5527, Title 29 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 5527. Amount of ordinary service or disability pension.

(d) (1) Notwithstanding provisions of this chapter to the contrary, an elected official shall receive a pension
computed in accordance with this subsection. The service or disability pension payable to the elected official and the
survivor's pension payable to the eligible survivor of such individuals shall be computed on the basis of compensation to
the elected official as an elected official irrespective of other credited service, with contribution to be determined based
upon compensation as an elected official. The minimum amount of pension payable to ~~an elected member of the General~~
~~Assembly or a retired elected~~ an individual elected to be a member of the General Assembly before February 28, 2025,
shall be computed by multiplying the elected official's years of service as an elected member of the General Assembly
times the highest rate of payment being paid to any retired member of the General Assembly, such rate to be computed by
dividing the monthly pension being paid to such retired member by the elected official's years of service as an elected
member of the General Assembly. The pension payable to an individual elected to be a member of the General Assembly
on or after February 28, 2025, shall be computed under § 5527(a)(1) of this section. An elected official elected prior to
January 1, 2012, shall be eligible to receive a pension beginning with the first month after the attainment of age 60,
provided that the elected official shall have served at least 5 years at the time of the elected official's termination of service
as an elected official, or beginning with the first month after attainment of age 55, provided that the elected official shall
have served at least 10 years at the time of the elected official's termination of service as an elected official. An elected
official elected on or after January 1, 2012, shall be eligible to receive a pension beginning with the first month after the
attainment of age 60, provided that the elected official shall have served at least 20 years at the time of the elected official's
termination of service as an elected official, or beginning with the first month after attainment of age 65, provided that the
elected official shall have served at least 10 years at the time of the elected official's termination of service as an elected

- 23 official. Any pension for credited service other than as an elected official shall be determined under the remainder of this
- 24 chapter as a separate pension.

SYNOPSIS

This Act adopts a recommendation made by the Delaware Compensation Commission in its January 6, 2025, report. Specifically, this Act changes the minimum amount of pension payable to a member of the General Assembly elected after February 28, 2025, because the pension amount will no longer be calculated by multiplying the elected official's years of service as an elected member of the General Assembly times the highest rate of payment being paid to any retired member of the General Assembly. Instead, the pension payable to an elected official of the General Assembly elected on or after February 28, 2025, shall be computed under § 5527(a)(1) of Title 29.

Author: Senator Sokola